

SENATE No. 344

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enhancing the educational outcomes of expectant and parenting students.

PETITION OF:

NAME:

Sal N. DiDomenico

DISTRICT/ADDRESS:

Middlesex and Suffolk

SENATE No. 344

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 344) of Sal N. DiDomenico for legislation to enhance the educational outcomes of expectant and parenting students. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 266 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enhancing the educational outcomes of expectant and parenting students.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 76 of the General Laws, as appearing in the 2022 Official edition,
2 is hereby amended by inserting after section 21 the following section:-

3 Section 22. (a) As used in this section the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “Department”, the department of elementary and secondary education.

6 “Expectant student”, a student who is pregnant or an expectant parent of a child.

7 “Parenting student”, a student who is the parent of a child.

8 “Parenting student liaison”, the position established under subsection (d).

9 “Title IX”, Title IX of the Education Amendments of 1972, 20 U.S.C. 1681 et seq.

10 “Title IX coordinator”, the school district employee designated under the requirements of
11 Title IX of the Education Amendments of 1972, 20 U.S.C. 1681 et seq. and its implementation.

12 (b) The department, after consultation with relevant state agencies and appropriate
13 community partners shall: (i) publish to its website a model of expectant and parenting student
14 policy and encourage all districts to develop their own expectant and parenting students policies
15 that align with this model; and (ii) compile and post on its website a list of resources, best
16 practices and research for schools to use to help expectant and parenting students stay in school
17 and to increase graduation rates for expectant and parenting students. These materials shall be
18 incorporated into the training of expectant and parenting student liaisons, as described in
19 subsection (d). The department shall update the model plan and the list of resources, best
20 practices and research at least every 3 years.

21 (c) A public school with students in grade 7 or higher in either (i) a municipality with an
22 annual birth rate to women ages 13 to 19 per 1,000 that is among the top 10 highest teen birth
23 rates in the state or (ii) a municipality with an annual total number of births to women ages 13 to
24 19, inclusive, greater than 150 shall qualify for an expectant and parenting student liaison
25 modeled after an evidence-based program at Chelsea High School. Each qualifying municipality
26 shall receive funding for the liaison model. The amount of this funding shall be determined by
27 the department. Districts shall determine which schools with grades 7 or higher shall have
28 liaisons. The districts shall give preference to placing liaisons at schools with the highest
29 percentages of expectant and parenting students. Each school shall post on its website the name
30 and contact information of its expectant and parenting student liaison. The duties of the

expectant and parenting student liaison may be in addition to other duties the liaison may have. Notwithstanding any general or special law to the contrary, the expectant and parenting student liaison shall have access to the school records necessary for the liaison to assist the expectant or parenting student with the development of a plan for the student to graduate from high school.

The department of public health shall calculate the annual birth rate and annual total number of births to women ages 13 to 19, inclusive, of each municipality. No later than April 1, 2026 the department of public health shall notify the department of its findings. No later than May 1, 2026 the department shall notify those school districts whose annual birth rate or annual total number of births to women ages 13 to 19, inclusive, require the designation of an expectant and parenting student liaison in the upcoming school year.

Each expectant and parenting student liaison shall, in close consultation with an expectant or parenting student, create an individualized plan for graduation that (i) is designed to ensure the student meets graduation requirements, (ii) includes flexible class scheduling and alternative credit accumulation options, as needed, and (iii) furthers the student's post-graduation college or career goals. As needed, the plan shall also include a proposed end date for the student's maternity or paternity leave of absence. The liaison shall present the advantages and disadvantages of each education option available to the student, without coercing or steering the student in any direction, and work with the student to determine which options best meet the student's needs. If flexible class scheduling and alternative credit accumulation options are not available in the student's school or district, the liaison shall work with the student to find such options. With the consent of the student, the liaison shall make a reasonable attempt to engage a family member in the development of the plan and any modifications to it. If such a family member is not available or if the student does not consent to the involvement of a family

member, the liaison shall make a reasonable attempt to engage an adult outside of the student's family in the development or modification of the plan, provided that the student consents to such involvement.

The liaison shall review the plan with the student at designated points during the school year and assess the student's progress toward each graduation requirement and post-graduation goal. The liaison and student shall modify the plan from time to time as appropriate.

Before, during and after a student's maternity or paternity leave of absence, the liaison shall attempt to connect a student with academic and social-emotional supports within and outside of the school, including but not limited to child care, health care, transportation, flexible scheduling, alternative credit accumulation options, and parenting and life skills classes. The liaison shall follow up with the student to ensure he or she has obtained needed supports and shall, where necessary, work in partnership with community-based organizations to assist and advocate for the student in obtaining support services. The expectant and parenting student liaison shall inform each expectant and parenting student of the student's rights under Title IX.

Each school district shall ensure that each expectant and parenting student liaison receives training in the needs and rights of expectant and parenting students. This training shall include but not be limited to the rights of expectant and parenting students under federal law, information on graduation requirements, flexible scheduling options, alternative education options, community resources for expectant and parenting teens, and the importance of encouragement and support of their educational success.

(e) In all schools with grades 7 or higher, the expectant and parenting student liaison or Title IX coordinator shall annually report to the superintendent the known number of parenting

students in the school, a summary of the academic achievement of these students, the number who graduate from high school, the number who drop out of school, and the number who enroll in post-secondary educational programs. Each superintendent shall annually report this data for the school district to the department. The department shall use its existing data collection tools to obtain this information from districts and shall modify those tools, as necessary, to obtain the information. The department shall post on its website aggregate statewide data and shall make district-level data available upon request except for data from districts that report fewer than 5 parenting students.

(f) School staff may encourage but shall not force or coerce an expectant or parenting student to inform his or her parents or guardians of the student's pregnant or parenting status.

(g) Nothing in this section shall supersede or replace rights or remedies under any other general or special law, nor shall this section create a private right of action.

SECTION 2. Each public school with students in grade 7 or higher that is required to have an expectant and parenting student liaison shall identify and train a liaison, as defined under section 22 of chapter 76, no later than September 1, 2025. No later than September 1, 2025, each public school with students in grade 7 or higher shall have and shall file with the department of elementary and secondary education an expectant and parenting student policy. No later than September 1, 2025, the department of elementary and secondary education shall specify a method for districts and schools to report the information required by subsection (e) of section 22 of chapter 76.